

WELLS FARGO BANK, NA v DAVIS

23CF14230

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is an action by Wells Fargo Bank, N.A. ("Plaintiff") against Bill P. Davis ("Defendant") for the collection of a credit card debt in the sum of \$7,858.48. In his Answer, Defendant did not deny the allegation in the Complaint that he owes the credit card debt but stated that he cannot afford to pay the debt. Now before the Court is Plaintiff's motion for judgment on the pleadings.

I. Legal Standard

A motion for judgment on the pleadings may be made upon the grounds that the complaint states facts sufficient to constitute a cause of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc. § 438(c)(1)(A).) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc. § 438(d).)

II. Legal Analysis

Plaintiff's Complaint alleges: (1) breach of written contract; (2) breach of contract (Implied in Fact); (3) money lent/money paid; (4) open book account; and (5) account stated.

A. Breach of Express or Implied Contract

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.) "Where contract language is clear and explicit and does not lead to absurd results, we ascertain intent from the written terms and go no further." (*Shaw v. Regents of Univ. of Cal.*, (1997) 58 Cal. App 4th 44, 53.)

Plaintiff alleges that Plaintiff and Defendant entered into a contract for a consumer credit card. (Complaint p. 3, iBC-1.) The Complaint alleges that pursuant to the contract, Plaintiff provided credit and Defendant used that credit to make consumer purchases. The Complaint next alleges that Defendant breached the contract by failing to make

required payments. (Compl. pg. 3, ,IBC-2.) Finally, the Complaint alleges that Plaintiff has been damaged in the amount of \$7,858.48.

In his Answer, Defendant does not dispute the existence of the contract or its terms, acknowledges that he was an authorized user on the account, and does not dispute that he breached the contract and Plaintiff was damaged. Defendant states however that the cannot afford to pay due to his financial status; while understandable on a human level, this is not an affirmative defense recognized in the law.

Plaintiff's complaint states sufficient facts to set forth causes of action for breach of express or implied contract and the Answer fails to state any facts setting forth a defense. Accordingly, Plaintiff's motion for judgment on the pleadings as to **causes of action one** (breach of express contract) **and two** (breach of implied contract) is **GRANTED**.

B. Money Lent/Money Paid

A claim for "money lent" is one of the common counts. (*Rubinstein v. Fakheri*, (2020) 49 Cal.App.5th 797, 809.) A common count claim "broadly applies 'wherever one person has received money which belongs to another, and which in 'equity and good conscience,' or in other words, in justice and right, should be returned.'" (*Id* [citations omitted].) The claim does not require privity of contract and does not require an express request for the loan. (*Id.*)

Plaintiffs complaint states that Defendant received money, via the credit card loan, which ultimately and rightfully belongs to Plaintiff. Defendant's Answer fails to set forth any facts constituting a defense. Accordingly, Plaintiff's motion for judgment on the pleadings as to **cause of action three** (money lent/money paid) is **GRANTED**.

C. Open Book Account

An open book cause of action requires the Plaintiff to establish that: 1) Plaintiff and Defendant had financial transactions with each other; 2) that Plaintiff, in the regular course of business, kept a written account of the debits and credits involved in the transactions; 3) that Defendant owes Plaintiff money on the account; and 4) The amount of money that Defendant owes Plaintiff. (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460; CACI 372)

Plaintiff has alleged uncontroverted facts that there was a financial transaction with Defendant, that Plaintiff kept a written account of the transactions, that Defendant owes the money and that the amount due is \$7,858.48. Accordingly, the Plaintiff's motion for judgment on the pleadings is **GRANTED** as to the **fourth cause of action** (open book).

D. Account Stated

The essential elements of an account stated are: “1) a previous transactions between the parties establishing the relationship of debtor and creditor; 2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; and 3) a promise by the debtor, express or implied, to pay the amount due.” (*Leighton v. Forster* (2017) 8 Cal. App. 5th 467,491.) Typically, an account stated arises where the creditor gives a statement of the account to the debtor and “[i]f the debtor fails to object to the statement within a reasonable time, the law implies his agreement that the account is correct as rendered.” (*Zinn v. Fred R. Bright* (1969) 271 Cal.App.2d 597, 600.)

Plaintiff’s complaint contains uncontroverted allegations that there were previous transactions between Plaintiff and Defendant that established a creditor/debtor relationship, that there was an agreement on the amount due, and that the Defendant impliedly or expressly agreed to pay the amount due. Defendant presents no facts constituting a defense. Accordingly, Plaintiff’s motion for judgment on the pleadings is **GRANTED** as to the **fifth cause of action** (account stated).

III. Conclusion

Plaintiff’s motion for judgment on the pleadings is **GRANTED**.

The Clerk shall provide notice of the Ruling forthwith. The Court intends to sign the lodged Order and Judgment.

FREEMAN, SR., et al. v SMITH

24CV47282

DEFENDANT'S DEMURRER AND MOTION TO STRIKE

Plaintiffs Michael Steven Freeman, Sr., and Janice Marie Freeman as Trustees of the Michael Steven Freeman Sr. and Janice Marie Freeman revocable Trust, and Michael Steven Freeman, Jr. filed their Complaint to quiet title against Defendant Lyle Smith. Now before the Court are Defendant's Demurrer and Motion to Strike.

The motions do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Furthermore, the demurrer fails to comply with California Rules of Court, rule 3.3120(a) and the motion to strike fails to comply with California Rules of Court, rule 3.1322(a).

Based on the foregoing, the motion is **DENIED**, without prejudice to refile, if otherwise allowed by law.